

Carrell, Bethany

From: Rhian, Marisa
Sent: Wednesday, April 29, 2026 1:21 PM
To: dolomite.inc@gmail.com; David Sloan
Cc: Kathy Sloan; Elva Peppers; Carrell, Bethany; Shely, Zachariah
Subject: Warning Letter, Rocky Creek Mine, MMR_215039
Attachments: DolomiteWarningLetter-RockyCreek_4-29-2026_inspection.pdf

Mr. Sloan,

Please see the attached warning letter for Dolomite, Inc., Rocky Creek Mine. In order to discuss the warning letter, please contact the Department to arrange a meeting within 15 days.

Sincerely,



Marisa Rhian, PWS, CPM

Florida Department of Environmental Protection
DWRM, Mining and Mitigation Program
Program Administrator

Marisa.Rhian@FloridaDEP.gov

Office: 863-578-1145

Cell: 863-581-0838



FLORIDA DEPARTMENT OF Environmental Protection

Bob Martinez Center
2600 Blair Stone Road
Tallahassee, FL 32399-2400

Ron DeSantis
Governor

Jay Collins
Lt. Governor

Alexis A. Lambert
Secretary

April 29, 2026

Dolomite, Inc.

C/o David Sloan

P.O. Box 938

Marianna, FL 32447

Email: dolomite.inc@gmail.com, sloand54@hotmail.com

**Re: Warning Letter
Rocky Creek Mine
DEP File No.: MMR_215039
Jackson County**

Dear Mr. Sloan,

The Florida Department of Environmental Protection (Department) conducted a file review of your facility in March 2026 and performed a compliance inspection at your facility on March 17, 2026, under authority of Sections 373.423 and 378.407, Florida Statutes (F.S.). During the inspection and file review, possible violations of Chapters 373, 378, and 403 FS., and Chapters 62-330, and 62C-36, Florida Administrative Code (F.A.C.), were observed.

During the inspection and file review, Department personnel noted the following:

1. It appears that Dolomite, Inc. has conducted an unauthorized expansion at the Rocky Creek Mine without the proper authorization. A review of our regulatory records indicates that an Environmental Resource Permit (ERP) has not been obtained to authorize works or activities in the expanded area.
2. It appears that the 50-foot setback has not been maintained between any earth-disturbing activities and the Ordinary High Water Level (OHWL) of the Chipola River in accordance with Specific Condition 3 of the ERP potentially impacting Sovereign Submerged Lands.
3. It appears that the project has not utilized best management practices (BMPs) to ensure erosion control and mitigate impacts to off-site avoided areas, and sovereign submerged lands, as required by Specific Condition No. 21 of Permit No. MMR_215039-002 and Part IV "Erosion and Sediment Control", Section 11.1, of the Applicants Handbook Volume I, F.A.C.

Warning Letter
Dolomite, Inc. – MMR_215039
April 29, 2026
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Violations of Florida Statutes or administrative rules may result in liability for damages and restoration, and the judicial imposition of civil penalties, pursuant to Sections 373.129, 403.121, 403.141, and 403.161, F.S.

Please contact Bethany Carrell at 850-245-8359 or Bethany.Carrell@FloridaDEP.gov, within **15 days** of receipt of this Warning Letter to arrange a meeting to discuss this matter. The Department is interested in receiving any facts you may have that will assist in determining whether any violations have occurred. You may bring anyone with you to the meeting that you feel could help resolve this matter.

Please be advised that this Warning Letter is part of an agency investigation, preliminary to agency action in accordance with section 120.57(5), F.S. We look forward to your cooperation in completing the investigation and resolving this matter.

Sincerely,

 Digitally signed by Marisa Rhian
Date: 2026.04.29 13:00:05
-04'00'

Marisa Rhian, PWS, CWE
Program Administrator
Mining and Mitigation Program
Marisa.Rhian@FloridaDEP.gov

CC: Kathy Sloan (Dolomite, Inc.), sloank@hotmail.com
Elva Peppers (Florida Environmental & Land Services, Inc.), elvapeppers@flesi.org
Brad Richardson (Florida Department of Environmental Protection),
Brad.Richardson@FloridaDEP.gov



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Dolomite, Inc.

C/o David Sloan

P.O. Box 938

Marianna, FL 32447

Email: dolomite.inc@gmail.com; sloand54@hotmail.com

RE: Rocky Creek Mine DEP File No. MMR_215039 – Site Inspection Report

Dear Representative,

The Department of Environmental Protection (Department) staff conducted an inspection of the above referenced site. Inspection details such as time, attendees, and findings can be found on the following page. The Inspection Report has been drafted from the Field Inspection Form that was filled out in the field at the time of inspection.

If you have any questions or comments, please contact Bethany Carrell of the Mining and Mitigation Program at 850-245-8359 or via email at Bethany.Carrell@FloridaDEP.gov.

Sincerely,

A handwritten signature in dark ink, appearing to be "B" followed by a long, sweeping horizontal line.

Bethany Carrell
Environmental Specialist III
Mining and Mitigation Program
Florida Department of Environmental Protection

CC: Kathy Sloan (Dolomite, Inc.), sloank@hotmail.com
David Thompson (Dolomite, Inc.), dthompson1947@hotmail.com
Elva Peppers (Florida Environmental & Land Services, Inc.), elvapeppers@felsi.org

Project: Rocky Creek Mine
Date: March 17, 2026
Attendees: Bethany Carrell – DEP
David Sloan and David Thompson – Dolomite
Elva Peppers – Florida Environmental & Land Services, Inc. (FELSI)
Location: Jackson County

Department Staff conducted a compliance and annual inspection of the subject property on March 17, 2026. The following notes were formulated based on observations made during the referenced inspection.

BACKGROUND:

The Department received a Notice of Existing Mine on June 2, 1988, and a Conceptual Reclamation Plan on September 10, 1990, which was updated on September 15, 1992. This notice indicated that mining and reclamation would be completed in 2018. The mine discharges to the Chipola River under the current Industrial Wastewater Facility Permit (IW) FL0101192-009-IW3S, which was issued on October 30, 2025.

Consent Order (OGC File No.: 24-1876) was signed on June 11, 2024, which required Dolomite, Inc. to obtain an Environmental Resource Permit (ERP), among other requirements. The Department issued the final ERP (MMR_215039-002) on January 6, 2026, and all requirements of the consent order were satisfied upon issuance of the permit. OGC File No.: 24-1876 has been closed by the Department.

INSPECTION OBSERVATIONS:

- The site appeared to be active at the time of inspection.
- The Department observed the recently installed spillway 6 and outfall structures (OFS-1 and OFS-2) at Points 1-6, which appears to be working as designed. Dolomite stated that the disturbed area around the spillway have been seeded. The Department recommended sloping some areas more so that they meet the reclamation requirements of Chapter 62C-36 F.A.C., and noted that further disturbance would not be required once the area has been stabilized.
- The Department observed both monitoring wells and both piezometers (Points 12 and 13).
- The Department observed where the old access road along the Chipola River had been expanded and regraded between points 7 and 10. Dolomite stated that this was done so the cement trucks could reach the southern tip of the site during the construction of the spillway and outfall structures. It appears that much of this expansion occurred within the 50-ft buffer provided for the Ordinary High Water Level (OHWL) to the Chipola River, an OFW and SSL, and some expansion was outside the ERP permit boundary. It appears that a 50-foot setback has not been maintained between any earth-disturbing activities and the OHWL of the Chipola River in accordance with Specific Condition 3 of the ERP.

- The Department had multiple conversations with Dolomite and FELSI during the permitting process about this road within the buffer, in which it was stated that no new activities would occur within the 50-foot buffer and the existing road would only be used to access remote areas of the property.
- The Department discussed with Dolomite and FELSI what constitutes as a “buffer” and “disturbance” and reiterated that the permitted plans show a 50-foot buffer between all wetlands and proposed mining activities (except a small portion of the southernmost extent of Wetland F shown on Sheet 3 of the permitted construction plans) and that this buffer must not be disturbed.
- Dolomite and FELSI stated that they are working on marking/flagging the permit boundary and the wooden stakes will be replaced with metal rods soon. The Department observed several flags near points 13 and 15.
- The Department discussed the 2025 annual report that was received on March 3, 2026, and the need to start monitoring water levels at all Monitoring wells and Piezometers. FELSI stated that auto recorders have been ordered and will be installed soon.
- The Department discussed the baseline for the monitoring wells which includes an elevated level for iron in MW-2. The baseline for both wells is now complete.

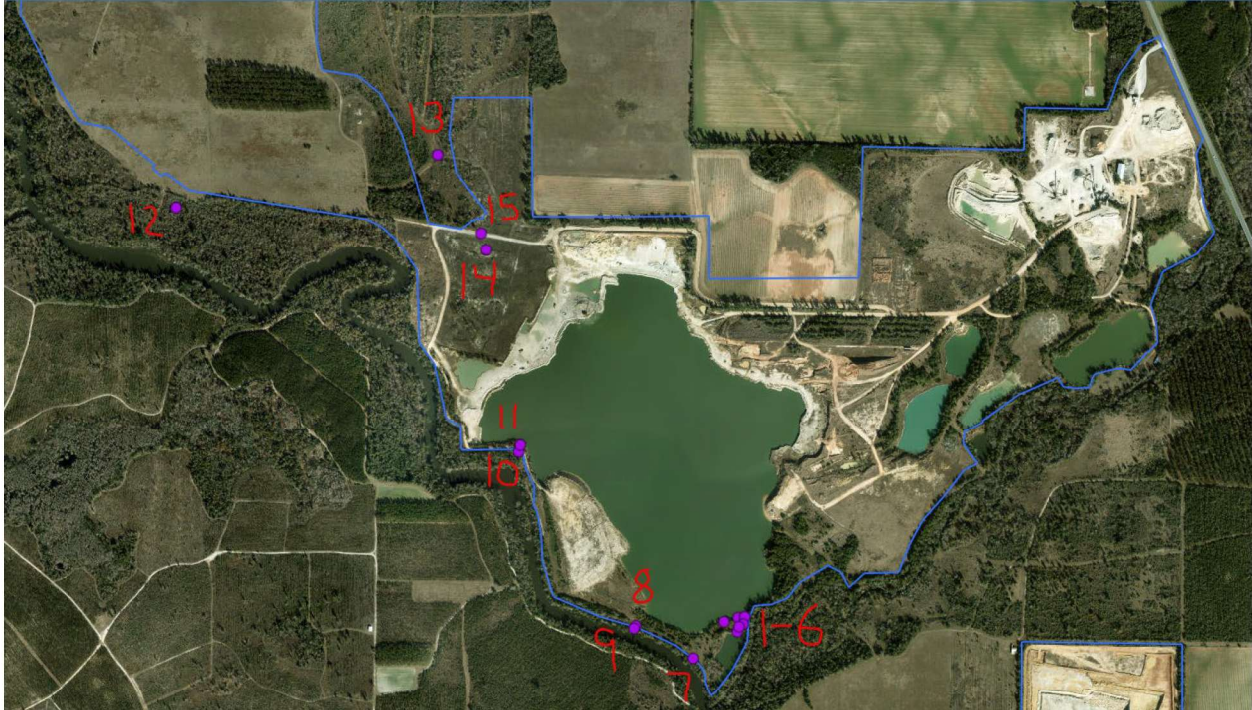
COMPLIANCE

Please be aware, the Department may move to enforcement action if these items are not addressed:

- **Begin reclamation activities to restore the 50-foot buffer in areas that have been disturbed as described in the inspection observations above.**
- **Install silt fence immediately along the western side of the site between the Chipola River and immediately adjacent to the access road disturbance until the entire area has been stabilized through vegetation.**
- **Re-seed all areas of disturbance within the 50-foot buffer within 15 days, including the access road.**
- **Submit photo documentation of the completed activities within 15 days.**

Rocky Creek Mine

March 17, 2026 Inspection Photos



Point 1: Facing northeast



Point 2: Facing southeast



Point 3: Facing south



Facing north



Point 4: Facing north



Facing south



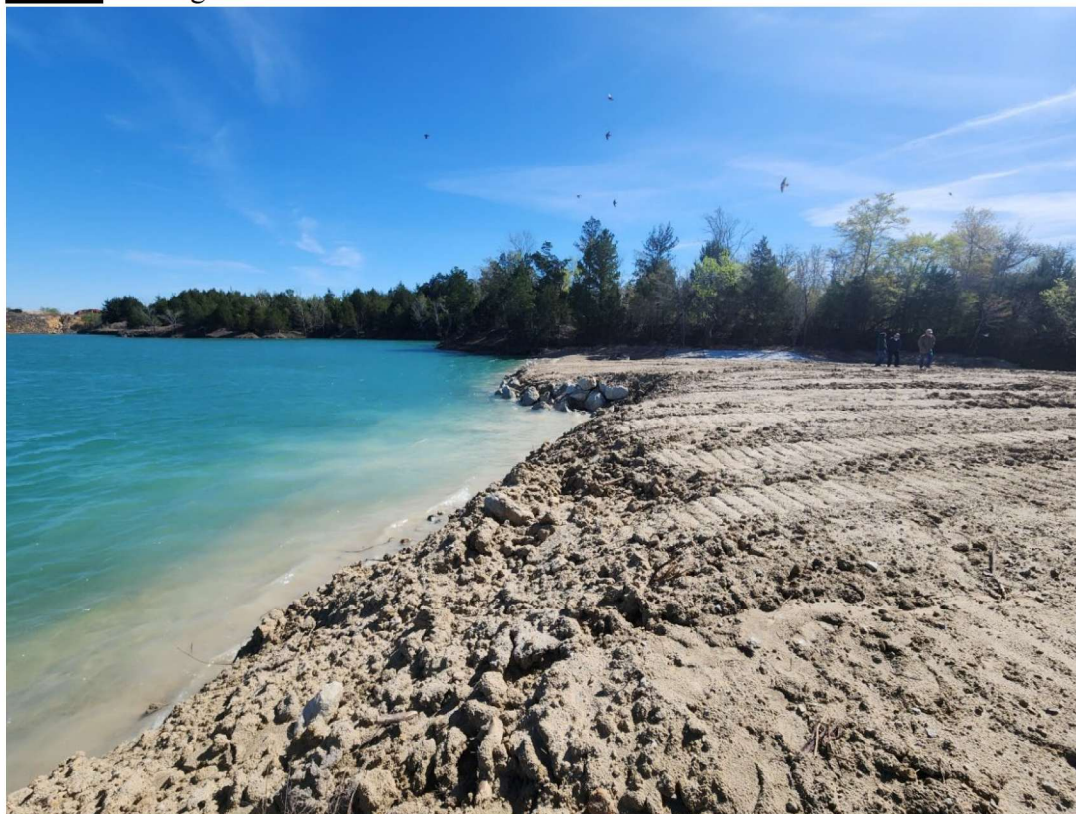
Point 5: Facing east



Facing west



Point 6: Facing east



Facing west



Point 7: Facing northeast



Facing northwest



Point 8: Facing east southeast



Facing west northwest



Point 9: Facing east southeast



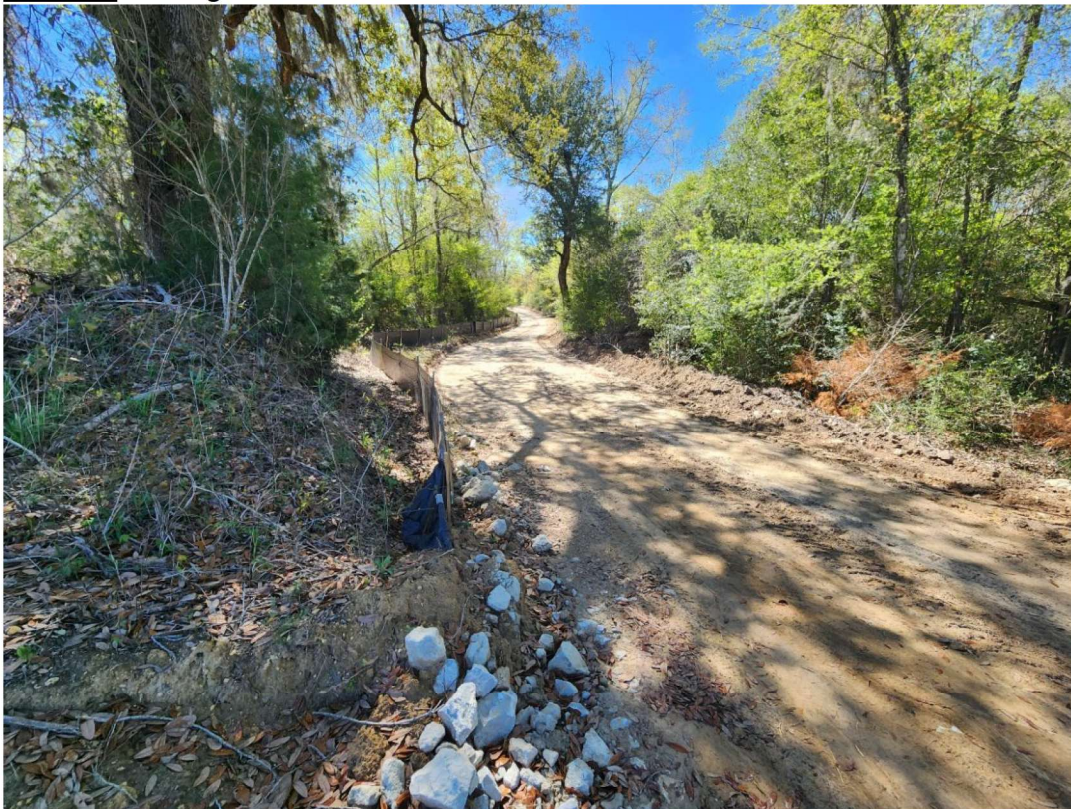
Facing west northwest



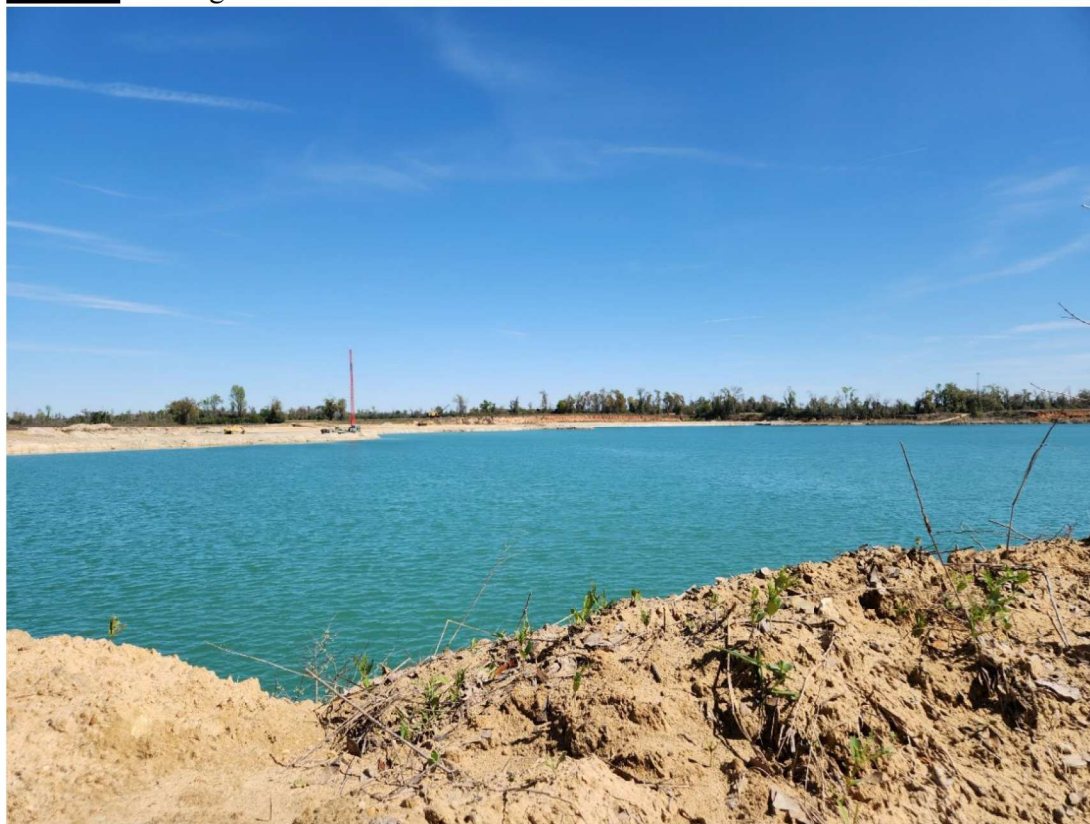
Facing southwest



Point 10: Facing south



Point 11: Facing northeast



Point 12:



Point 13:



Point 14: Facing east



Point 15: Facing north

